

SOCIAL MEDIA TRACING SERVICES AGREEMENT

(For Criminal Investigations)

entered into by and between

Company Name: NAMIBIA INVESTIGATION SERVICES CC

Registration no. CC/2014/01251

hereinafter referred to as "Shortened Name" N.I.S.

and

SAU TECHNOLOGY AND DISASTER RECOVERY (PROPRIETARY) LIMITED

Registration no. 2023/0508

hereinafter referred to as "Sautech"

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1. DEFINITIONS

For the purpose of this Agreement:

- "Social Media Tracing" refers to the collection, analysis, and reporting of publicly available data from online social networking platforms.
 - "Publicly Available Data" means information that is not protected by passwords, privacy restrictions, or legal protections.
 - "Authorized Use" means the use of the services solely for the lawful purpose of criminal investigations.
 - "Investigative Target" means any individual, group, or account under investigation.
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2. PURPOSE

The purpose of this Agreement is to set out the terms under which the Service Provider will provide social media tracing services to assist in the Client's criminal investigation efforts.

3. SCOPE OF SERVICES

The Service Provider agrees to perform the following:

- Identification of public social media accounts linked to specific individuals.
- Analysis of activity, interactions, and connections on identified platforms.
- Geolocation tagging and metadata extraction (where available and legally permissible).
- Cross-referencing usernames, aliases, email addresses, and phone numbers.
- Time-stamped reports, digital evidence logs, and summary findings.
- Expert support for court appearances, if requested and under additional fee arrangements.

All services are based on legally accessible and publicly available data. Private or protected content will not be accessed unless proper legal authorization is provided.

4. CLIENT OBLIGATIONS

The Client agrees to:

- Provide clear, written instructions regarding each assignment.
 - Warrant that it has lawful authority to request and use this data.
 - Provide all required legal documentation (e.g., warrants, subpoenas) where private information access is requested.
 - Use the resulting data strictly for its intended lawful purpose.
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5. CONFIDENTIALITY & DATA PROTECTION

- 5.1. Both parties agree to maintain strict confidentiality regarding all exchanged information.
- 5.2. The Service Provider shall comply with all applicable data protection laws (including POPIA/GDPR).
- 5.3. Data collected will be stored securely and only retained for for a period of 5 (five) years unless otherwise required by law or requested by the Client in writing. unless otherwise required by law.
- 5.4. Upon Client request or termination of this Agreement, all data and reports will be returned or securely destroyed.
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6. LEGAL COMPLIANCE

- 6.1. The Service Provider shall not engage in hacking, social engineering, or unauthorized access.
- 6.2. All services are provided within the bounds of local, national, and international law.
- 6.3. The Client indemnifies the Service Provider from liability arising from misuse or unlawful application of the reports.
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7. FEES AND PAYMENT

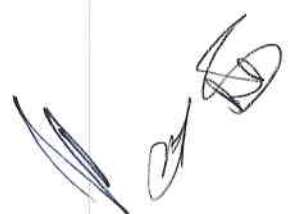
- 7.1. Fees for services shall be charged at a rate of **N\$ 895.00 (excluding VAT) per hour**.
- 7.2. Due to the nature of investigative work, it is difficult to predetermine the number of hours required. Tracing tasks may take anywhere from **1 hour to 2 full working days**, depending on the complexity of the case and the volume of social media data involved.
- 7.3. The Client shall pay all invoices within 15 days of receipt. Late payments may incur interest at 2% per month.
- 7.4. Emergency or after-hours services may be billed at a higher hourly rate as specified.
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8. INTELLECTUAL PROPERTY

All deliverables, reports, and data provided shall remain the intellectual property of the Service Provider until full payment is received. Upon payment, ownership transfers to the Client.

9. LIABILITY & INDEMNITY

- 9.1. The Service Provider is not liable for any loss or damage caused by incomplete, inaccurate, or deleted social media content.
- 9.2. The Client agrees to indemnify and hold harmless the Service Provider from any claims resulting from the Client's misuse or unauthorized disclosure of the collected data.
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10. CHAIN OF CUSTODY & EVIDENCE

10.1. The Service Provider agrees to document all steps taken in the tracing process with date/time stamps and digital logs.

10.2. Reports shall be delivered with metadata and version history to ensure admissibility in legal proceedings.

11. TERM & TERMINATION

11.1. This Agreement shall commence on the Effective Date and continue until terminated by either party with 30 days written notice.

11.2. Immediate termination may occur upon breach of terms or illegal activity.

12. FORCE MAJEURE

Neither party shall be held liable for delays or failures resulting from events beyond their reasonable control, including outages, cyber-attacks, strikes, or acts of nature.

13. NON-SOLICITATION

Neither party shall solicit for employment any personnel of the other party involved in the execution of this Agreement, during the term and for 12 months after termination.

14. DISPUTE RESOLUTION

Any disputes arising from this Agreement shall first be resolved through mediation. If unresolved, the matter shall be referred to arbitration in accordance with the laws of Republic of South Africa.

15. GOVERNING LAW

This Agreement shall be governed by and interpreted under the laws of Republic of South Africa.

16. ENTIRE AGREEMENT

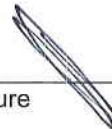
This document, including its annexures, constitutes the entire agreement between the parties and supersedes all prior discussions or agreements.

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SIGNATURES

SIGNED AT WINDHOEK on this the 18TH day of JULY 2025.

MICHAEL NICOLAS NIEUWOUDT
Company Representative (print name)


Signature

FOUNDER AND OWNER
Occupation
(duly authorized)

NAMIBIA INVESTIGATION SERVICES CC
Company (print name)


AS WITNESS 1 (Signature)
LOUISA T. SNYMAN


AS WITNESS 2 (Signature)
JEAN-CLAUDE MOUTON

SIGNED AT _____ on this the _____ day of _____ 2025.

Mr. Lukas Janse van Rensburg
Managing Director
Sautech (Pty) Ltd

Signature

AS WITNESS 1 (Signature)

AS WITNESS 2 (Signature)

Any notice required under this Agreement shall be in writing and delivered by email, registered post, or hand delivery to the addresses specified below.

NOTICE

Reports will be delivered within 5-10 working days from receipt of all relevant Client information, unless otherwise agreed.

SERVICE LEVEL AGREEMENT

In the event of a data breach, the Service Provider shall notify the Client within 72 hours of becoming aware of the breach and cooperate fully in any investigation or mitigation steps required.

DATA BREACH NOTIFICATION

In no event shall the Service Provider be liable for indirect, incidental, special, or consequential damages, including loss of data, profits, or business opportunities.

LIMITATION OF LIABILITY

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